

Form No: HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT**

Crl.Misc. No. 46912-B/2021

Ali Raza Versus The State and another

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge and that of parties or counsel, where necessary.
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09.08.2021

Mr. Afrasiab Mohal, Advocate for the petitioner.
Mr. M. Arshad Ali Farooqi Deputy Prosecutor General
for the State with Iftikhar, ASI.

Through this petition, Ali Raza, petitioner
supplicates post-arrest bail in case FIR No. 745/2020,
dated 23.06.2020 for offences under sections 9-C and 15
of CNSA, 1997 registered at Police Station City Kamoki,
Gujranwala.

2. As per brief allegation levelled in the FIR, on
23.06.2020 at 10:15 a.m. the petitioner was apprehended
by the police party in consequence of a tip-off while
accompanying his co-accused who was carrying Charas
weighing 1520-grams. Hence, this FIR.

3. Contentions heard and record perused.

4. After hearing learned counsel for the parties and
going through the record it has straightaway been noticed
by this Court that two pedestrian were coming from the
Ghosia Chowk side, one having a white colour shopper in
his hand who attempted to fled away back, on seeing the
police party and were apprehended by police contingents
after chasing. The narration of the FIR disclosed that
recovery of the narcotic was affected from petitioner's
co-accused namely Azeem Ali and petitioner was only
accompanying him. Mere this fact that the petitioner was

accompanying the principal accused will not establish that the contraband was in his active possession or even he had any knowledge about it. As per FIR the petitioner has been found connected in this case only on the statement of co-accused that charas was being supplied to him by petitioner, which is inadmissible in evidence and cannot be relied upon.

Except above statement no other incriminating material is available against the petitioner. Moreover, under article 38 of the Qanun-e-Shahdat Order, 1984 admission of an accused before police could not be used against him. Article 38 of the Order *ibid* is reproduced hereunder for ready reference.

“Confession to police officer not to be proved No confession made to a police officer shall be proved as against a person accused of any offence”

Article 39 of the said Order is also reproduced as infra:-

“Confession by accused while in custody of police not to be proved against him Subject to Article 40 no confession made by any person whilst he is in the custody of a police officer, unless it be made in the immediate presence of Magistrate shall be proved as against such person”

Reliance is also placed upon the case laws reported as “The State vs. Syed Abdul Qayum” (2001 SCMR 14) and “Raja Muhammad Younas v. The State” (2013 SCMR 669) wherein the Hon’ble Supreme Court of Pakistan held as under:-

“After hearing the counsel for the parties and going through the record, we have noted that the only material implicating the petitioner is the statement of co-accused Amjad Mahmood, Constable. Under Article 38 of Qanun-e-Shahadat Order, 1984,

admission of an accused before police cannot be used as evidence against the co-accused.”

The same view was also reiterated by the Hon’ble Supreme Court of Pakistan in the recent landmark judgment reported as “Muhammad Sarfraz Ansari vs. The State and others” (PLD 2021 SC 738) wherein it was held as infra:-

“No doubt, as per Article 43 of the Qanun-e-Shahadat Order, 1984 when more persons than one are being jointly tried for the same offence and a confession made by one of such persons admitting that the offence was committed by them jointly, is proved, the court may take into consideration the confessional statement of that co-accused as circumstantial evidence against the other co-accused (s). However, this Court has, in several cases, held that conviction of a co-accused cannot be recorded solely on the basis of confessional statement of one accused unless there is also some other independent evidence corroborating such confessional statement. The principle ingrained in Article 43 of the Qanun-e-Shahadat is applied at the bail stage and the confessional statement of an accused can lead the court to form a tentative view about prima facie involvement of his co-accused in the commission of the alleged offence; but as in the trial, at the bail stage also, the prima facie involvement of the co-accused cannot be determined merely on the basis of confessional statement of other accused without any other independent incriminating material corroborating the confessional statement”.

As stated above, the petitioner was arrested along with his co-accused, who was holding a shopping bag in his hand but the fact remains that the contraband was not consciously/actively in possession of the petitioner. Under Section 6 of the Control of Narcotic Substances Act, 1997 possession of narcotic drugs is an offence, which is punishable under Section 9 of the said Act. Section 6 reads as under:-

“6. Prohibition of possession of narcotic drug etc.---No one shall produce,

manufacture, extract, prepare, possess, offer for sale, purchase, distribute, deliver on any terms whatsoever, transport, dispatch, any narcotic drug, psychotropic substance or controlled substance except for medical scientific or industrial purposes in the manner and subject to such conditions as may be specified by or under this Act or any other law for the time being in force.”

General Rule is that there is presumption that mens rea, an evil intention or a knowledge of wrongfulness of the act is an essential ingredient in every offence. In other words, the prosecution is duty bound to prove that the accused was knowingly in control of something in the circumstances, which showed that he was assenting to being in control of it. There is no evidence except the oral assertions of the prosecution that he was physically/consciously/actively in control of the alleged contraband. For meeting such circumstances, the Legislature have enacted a provision in the shape of section 29 of the Control of Narcotic Substances Act, 1997. For convenience Section 29 of the Act is reproduced as under:-

29. Presumption from possession of illicit articles.---In trials under this Act, it may be presumed, unless and until the contrary is proved, that the accused has committed an offence under this Act in respect of--

(a) Any narcotic drug, psychotropic substance or controlled substance;

(b) any cannabis, coca or opium poppy plant growing on any land which he has cultivated;

(c) Any apparatus specially designed or any group of utensils specially adapted for the production or manufacture of any narcotic drug, psychotropic substance or controlled substance; or

(d) any material which have undergone any process towards the production or manufacture of narcotic drug, psychotropic substance or controlled substance or any residue left of the materials from which a narcotic drug, psychotropic substance or controlled substance has been produced or manufactured for the possession of which he fails to account satisfactorily.

The ‘word possession’ has been defined in [**Black’s Law Dictionary, tenth edition, page-1351**], which is reproduced as infra:-

“Possession: 1. The fact of having or holding property in one’s power; the exercise of dominion over property. 2. The right under which one may exercise control over something to the exclusion of all others; the continuing exercise of a claim to the exclusive use of a physical thing with the intent to hold it as one’s own. La. Civ. Code art. 3421 (1). 4. (usu. Pl.) something that a person owns or controls; property (2). Cf. ownership; Title (1). 5. A territorial dominion of a state or country.”

Word possession has also been defined in case law titled as “Muhammad Siddique J Jal ADA vs. The State (PLJ 1985 FSC 50) wherein it was held as infra:-

“ The word ‘possess’ used in Article 4 means actual physical possession and not mere constructive possession. Moreover,

possession should be exclusive of the accused.”

It is nowhere in the prosecution's case that the petitioner has some direct relation with the narcotic drugs or as otherwise dealt with. It will not be out of place to mention here that the evidence of an accomplice is ordinarily regarded as suspicion; therefore, extent and level of corroboration has to be assessed keeping in view the peculiar facts and surrounding circumstances of the case. The question whether the petitioner had the conscious knowledge or possession of the recovered narcotic substance from co-accused shall be determined at the time of trial. Furthermore, mere levelling of allegations of heinous offence is not sufficient to keep the accused behind the bars, when once accused succeeds to establish that his case calls for further inquiry and probe and rigors contained in section 51 of CNSA, 1997 would not be attracted. Wisdom is derived from the following case laws reported as “Gul Hassan Dero vs. The State” (2000 P.Cr.L.J. 657), “Hadi Bux alias Hadoo vs. The State” (2000 P.Cr.L.J. 714), “Gul Zaman vs. The State” (1999 SCMR 1271), “Tahir vs. The State” (2000 P.Cr.L.J. 949), “Dad Khan vs. The State” (2020 SCMR 2062) and “Noman alias Noma vs. The State” (2020 P.Cr.L.J. Note 40).

5. It is admitted fact that no recovery has been effected from the petitioner and he was only accompanying his co-accused from whose possession charas was recovered, his active participation in the

crime and attraction of section 15 of CNSA, 1997 will be determined at the time of trial after recording of evidence. I am guided by the case laws cited as “Shaukat Ali v. The State & others (2017 P Cr.L.J 1020) & “Atif-ur-Rehman v. The State & another” (2021 SCMR 324).

6. Petitioner is behind the bars since his arrest. The investigation of the case is complete and person of the petitioner is no more required by the police for the purpose of further investigation. The petitioner is still awaiting his trial, the conclusion of which is not in sight in near future, therefore, his further detention in jail would serve no useful purpose for the prosecution. Accordingly, this petition is **allowed** and the petitioner is admitted to post arrest bail on furnishing bail bond in the sum of Rs.1,00,000/- with one surety in the like amount to the satisfaction of the learned trial Court.

7. Needless to observe that the observations made hereinabove are only tentative in their nature and are strictly confined to the extent of grant of instant bail.

(Muhammad Tariq Nadeem)
Judge

Khurram

Approved for reporting

JUDGE